

NAPCS Unionization Research — State — Charter Sector Overview

Tennessee — NLRB R10 Jurisdiction — June 6, 2026 [RESEARCH DEFERRED]

NAPCS Unionization Research • June 6, 2026 • Template v8.0 • TIER 2D — RESEARCH DEFERRED

Section 1: State Overview

State	Tennessee
Labor Board	NLRB R10 — National Labor Relations Board, Region 10 (Atlanta)
Governing Law	Tenn. Code Ann. §49-13 (Public Charter Schools Act). Charter schools are independent employers. NLRB R10 private employer framework applies.
Federal NLRB Jurisdiction	YES — All TN charter schools are independently operated nonprofits — NLRB R10 jurisdiction.
Right-to-Work	Right-to-Work State — Tenn. Code Ann. §50-1-201
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — RTW state; no card-check statute.
Research Status	DEFERRED — Executive Sponsor direction, June 7, 2026 (PDR-018). Sector assumed unorganized. No school-level research conducted.

Section 2: Charter Sector Landscape

Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026). Sector assumed unorganized. Charter universe and enrollment figures are sourced from Charter School Registry v133 and NCES ELSI 2024–25. No school-level research has been conducted.

Category	Schools	% of Total	Notes
No Organizing Activity Documented	112	100%	Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026). Sector assumed unorganized.
Total Charter Schools in Tennessee	112	100%	Source: Charter School Registry v133 (NCES ELSI 2024–25).

Charter Sector Enrollment

Total Charter Enrollment	44,349 students — 4.4% of state K–12 enrollment (1,003,622 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	N/A — research deferred; sector assumed unorganized
Students in Organized Charter Schools	N/A — research deferred; sector assumed unorganized
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
KIPP Nashville	Network‡	8	—	—	3,084
Compass Community Schools	Network‡	6	—	—	1,449
Memphis Business Academy	Network‡	5	—	—	1,500
Power Center Academy	Network‡	5	—	—	2,571
Freedom Prep Academy	Network‡	4	—	—	1,908
LEAD Public Schools Nashville	Network‡	4	—	—	2,140
Memphis School of Excellence	Network‡	4	—	—	1,767
City University Schools Memphis	Network‡	3	—	—	286
Cornerstone Prep	Network‡	3	—	—	946
KIPP Memphis	Network‡	3	—	—	1,028
Nashville Classical Charter School	Network‡	2	—	—	647
Rocketship Education	Network‡	2	—	—	948
STEM Prep Academy	Network‡	2	—	—	959
Valor Collegiate Academies	Network‡	2	—	—	1,909
TOTAL — All CMO/EMO Schools in Tennessee		53		0 organized schools in network-affiliated charters	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

14 network (type unclassified). Approximately 59 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of June 6, 2026.

1: Legal & Jurisdictional Framework

Tenn. Code Ann. §49-13 (Public Charter Schools Act). Charter schools are independent employers. NLRB R10 private employer framework applies. Tennessee is a right-to-work state (Tenn. Code Ann. §50-1-201). Charter schools in Tennessee are subject to NLRB jurisdiction as private employers (NLRB R10). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter Sector Structure

Tennessee operates 112 open-enrollment charter schools, enrolling approximately 44,349 students. 14 charter management organizations and education management organizations operate in Tennessee. The largest networks by campus count are KIPP Nashville (8 campuses in state), Compass Community Schools (6 campuses in state), Memphis Business Academy (5 campuses in state). Approximately 59 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above. No school-level union research has been conducted. Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026).

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

No press coverage of charter school employee organizing has been identified in Tennessee. Coverage focuses on ASD restructuring, CMO performance, and the district-employment structure.

Legislative Context

The Tennessee Professional Educators Collaboration Act (TPECA, Tenn. Code Ann. §49-5-610) governs collective bargaining for district-employed charter teachers. TPECA is distinct from private-sector NLRB framework. The Achievement School District conversion to local management in 2023 affected the authorized school population. No legislation addressing independent CMO charter employee labor relations has been identified.

Section 6: Contract & CBA Access Registry

No collective bargaining agreements documented for this state. Research deferred — sector assumed unorganized (PDR-018, June 7, 2026).